FORMAL INSTRUMENT OF AGREEMENT

THIS AGREEMENT is made on the 15th day of January 2026

BETWEEN **ABC DEVELOPMENTS PTY LTD (ABN 41 638 205 117)** of Level 12, 1 Martin Place, Sydney NSW 2000

(Principal)

AND **XYZ BUILDERS PTY LTD (ABN 77 604 211 380)** of 16 Distribution Place, Seven Hills NSW 2147

(Contractor)

1. BACKGROUND

A. The *Principal* wishes to engage the *Contractor* to construct *the Works* in accordance with the requirements of the *Contract*.

B. The *Principal* and the *Contractor* agree that the *Contractor* must construct *the Works* for the *Principal* on the terms of this *Contract*.

2. OPERATIVE PROVISIONS

2.1 Performance

(a) The *Contractor* must construct *the Works* in accordance with the *Contract*.

(b) The *Principal* must pay the *Contractor* the contract sum at the times and in the manner provided for in the *Contract*.

(c) The contract sum is the lump sum of **$18,240,000.00** (which excludes GST), subject to adjustment in accordance with the terms of the *Contract*.

(d) Each of the parties must perform the obligations imposed on it by the *Contract*.

2.2 Contract Documents

The *Contract* comprises the following documents:

Document Description	**Where Found**
Formal Instrument of Agreement	This document
Amended Australian Standard AS 4902–2000 - general conditions of contract for design and construct (including Annexure Parts A, B, C, D, E, F, G, H, J, K, L, M and N).	Attached to this document
Principal's project requirements.	Attached to this document in Annexure Part I.

3 Prior Work

3.1 The terms of the *Contract* apply to all of the work performed by the *Contractor* in connection with *the Works* under the *Contract*, even if it was performed prior to the date of the *Contract*.

4 Execution

EXECUTED as an agreement.

Executed by **ABC Developments Pty Ltd (ABN 41 638 205 117)** in accordance with section 127 of the *Corporations Act 2001* (Cth):

Signature of Director	Signature of Director/Secretary
Name of Director (print)	Name of Director/Secretary (print)
Date	Date

Executed by **XYZ Builders Pty Ltd (ABN 77 604 211 380)** in accordance with section 127 of the *Corporations Act 2001* (Cth):

Signature of Director	Signature of Director/Secretary
Name of Director (print)	Name of Director/Secretary (print)
Date	Date

ANNEXURE PART A

Contract particulars

Item		Clause	Particulars
1.	Principal	1	ABC Developments Pty Ltd
2.	Contractor	1	XYZ Builders Pty Ltd
3.	Principal's Representative	20	D. Carter
4.	Site	1	42 Harbour Street, Pyrmont NSW 2009
5.	Description of the Works	1	Harbour Street Residences: design and construction of a 14-storey residential building with two basement levels
6.	Date for practical completion	1	18 December 2026
7.	Liquidated damages	34.7	$12,500 per day
8.	Cap on liquidated damages	34.7	10% of the contract sum
9.	Security	5	5% of the contract sum, two unconditional bank guarantees
10.	Defects liability period	35	52 weeks
11.	Reference date for progress claims	37.1	the 25th day of each month
12.	Time for the Principal's Representative to issue a payment schedule	37.2	10 business days
13.	Extension of time: time for the Contractor's claim	34.3	28 days after the Contractor becomes aware of the cause of delay
14.	Delay damages	34.9	$3,800 per day
15.	Variations: valuation	36.4	Item 34 rates and, failing agreement, reasonable rates
16.	Interest on overdue payments	37.5	8% per annum
17.	Governing law	1	New South Wales